

24STCV29269 24STCV29269

County: los-angeles

Division: Civil Law and Motion

Department: 1

Hearing date: 2026-09-23

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SS%20%2C1%2C09%2F23%2F2026

Source SHA-256: b98025ff3384e896de520371480ff5d55028fba4a85e02c1e8ac12524bbb34e4

Case Number: 24STCV29269 Hearing Date: September 23, 2026 Dept: 1

Final

Approval of Class Action Settlement

Department SSC-1

Hon. Theresa M. Traber

Devon Bethune v. Valley Light Center for Social
Advancement

Case

No.: 24STCV29269

Hearing Date:

September 23, 2026

TENTATIVE RULING

The Court hereby GRANTS final approval and
awards/approves the following:

(1) \$47,250 for
attorney fees to Class Counsel, Lipeles Law Group, APC; (2) \$6,575.06 for
attorney costs to Class Counsel; (3) enhancement payment of \$7,500 to the class representative, Devon Bethune; (4)
\$8,775 (65% of \$13,500 PAGA penalty) to the LWDA; and (5) \$4,950 for
settlement administration costs to Phoenix Settlement Administrators.

Plaintiff's counsel shall submit a proposed Order and

Judgment, consistent with this ruling containing all requisite terms, including the class definition, release language, and a statement that no class members requested exclusion. Plaintiff shall also file with the Court the Motion for Attorney's Fees which was submitted and served via Case Anywhere but not filed with the Court, as is required.

The Court orders class counsel to file a final report summarizing all distributions made pursuant to the approved settlement, supported by declaration. The Court will set a non-appearance date of _____ for review of the final report, which is ordered to be filed at least five court days beforehand.

BACKGROUND

Plaintiff

Devon Bethune sued his former employer, Defendant Valley Light Center for Social Advancement, for alleged wage and hour violations. Plaintiff seeks to represent a class of Defendant's current and former non-exempt employees.

On

November 6, 2024, Plaintiff filed his Class Action Complaint against Defendant for: (1) failure to pay overtime (Cal. Labor Code §§ 510, 511, 558, 1194, 1198; IWC Wage Order No. 4); (2) failure to pay minimum wages (Cal. Labor Code §§ 1194, 1197, 1197.1, 1198; IWC Wage Order No. 4); (3) failure to pay for meal periods not provided (Cal. Labor Code §226.7; IWC Wage Order No. 4); (4) failure to pay for rest periods not provided (Cal. Labor Code §226.7; IWC Wage Order No. 4); (5) failure to maintain records and provide accurate itemized wage statements (Cal. Labor Code § 226); (6) failure to pay wages due on termination (Cal. Labor Code §§ 201-203); (7) failure to reimburse business expenses (Cal. Labor Code § 2802); (8) failure to allow inspection of employment records (Cal. Labor Code § 1198.5); and (9) unfair/unlawful business practices (Cal. Bus. and Prof. Code §§ 17200 et seq.).

On

January 23, 2025, Plaintiff filed his First Amended Class Action Complaint ("FAC") in the Los Angeles Superior Court, adding a claim pursuant to the Private Attorney General Act of 2004, Cal. Lab. Code §§ 2699 (PAGA), et seq.

On

July 17, 2025, the parties virtually attended via Zoom an all-day mediation

with mediator Lindsey Bayman, Esq., which ultimately resulted in settlement. The terms of settlement were finalized in the long-form Class Action and PAGA Settlement Agreement, a copy of which was filed with the Court on January 26, 2026.

On April 16, 2026, the Court granted preliminary approval of the settlement.

Notice was given to the Class Members as ordered (see Declaration of Connor Tevenan ("Tevenan Decl.")). Now before the Court is the Motion for Final Approval of the Settlement. Plaintiff's separate Motion for Attorney's Fees was submitted and served via Case Anywhere but not filed with the Court, as is required.

SETTLEMENT

CLASS DEFINITION

.

"Class"

means all individuals whom Defendant classified as non-exempt employees and who worked for Defendant in California at any time during the Class Period. (¶1.6)

.

"Class

Period" means the period from November 6, 2020, to July 17, 2025. (¶1.13)

.

"Aggrieved

Employee" means all individuals whom Defendant classified as nonexempt employees and who worked for Defendant in California at any time during the PAGA Period. (¶1.4)

.

"PAGA

Period" means the period from November 5, 2023 to the date of preliminary approval of the settlement. (¶1.32)

TERMS

OF SETTLEMENT AGREEMENT

The essential terms are as follows:

.

The Gross

Settlement Amount ("GSA") is \$135,000, non-reversionary.

(¶3.1)

o Defendant represents that there are approximately 5,618 workweeks worked by Class Members during the Class Period up until the date of mediation. If the number of Workweeks worked by Class Members during the Class Period is in fact more than 10% greater than this figure [i.e., more than 6,179.8], Defendant agrees to increase the Gross Settlement Amount on a proportional basis (i.e., if there were in fact 9% more Workweeks worked by Class Members during the Class Period until the date of mediation than this estimate, the Gross Settlement Amount would be unchanged, but if there were in fact 11% more Workweeks worked by Class Members during the Class Period until the date of mediation than this estimate, Defendant would increase the Gross Settlement Amount by 11%). (¶8.1)

o At final approval, the settlement administrator represents that the total number of Workweeks during the Class Period was five thousand nine hundred eight (5,908), so the escalator was not triggered. (Tevenan Decl., ¶12.)

.

The

Net Settlement Amount ("Net") estimated at preliminary approval (\$49,300) is the GSA minus the following:

o Up to \$47,250 (35%) for attorney fees (¶3.2.2);

o Up to \$10,000 for attorney costs (Ibid.);

o Up to \$10,000 for a service award to the proposed class representative (¶3.2.1);

o Up to \$4,950 for settlement

administration costs (§3.2.3); and

o Payment of \$13,500 PAGA penalty (65% or \$8,775 to the LWDA). (§3.2.5)

.

Defendant

will separately pay any and all employer payroll taxes owed on the Wage Portions of the Individual Class Payments. (§3.1)

.

There

is no claim form requirement. (§3.1)

.

Individual Settlement Payment Calculation: Each

Participating Class Member's Individual Class Payment will be calculated by (a) dividing the Net Settlement Amount by the total number of Workweeks worked by all Participating Class Members during the Class Period and (b) multiplying the result by each Participating Class Member's Workweeks. (§3.2.4)

Non-Participating Class Members will not receive any Individual Class Payments.

The Administrator will retain amounts equal to their Individual Class Payments in the Net Settlement Amount for distribution to Participating Class Members on a pro rata basis. (§3.2.4.2)

o PAGA Payments: The Administrator will calculate each Individual PAGA Payment by (a) dividing the amount of the Aggrieved Employees' 35% share of PAGA Penalties of \$4,725.00 by the total number of PAGA Period Pay Periods worked by all Aggrieved Employees during the PAGA Period and (b) multiplying the result by each Aggrieved Employee's PAGA Period Pay Periods. (§3.2.5.1)

o Tax Allocation: Each Participating Class Member's Individual Class Payment will be allocated as 20% to wages; 80% to interest and penalties (§3.2.4.1). PAGA Payments shall be treated as 100% penalties. (§3.2.5.1)

.

"Response Deadline" means 60 days after

the Administrator mails Notice to Class Members and Aggrieved Employees and shall be the last date on which Class Members may: (a) fax, email, or mail Requests for Exclusion from the Settlement, or (b) fax, email, or mail his or

her Objection to the Settlement. Class Members to whom Class Notices are resent after having been returned undeliverable to the Administrator shall have an additional 14 calendar days beyond the expired Response Deadline to request an Exclusion from the Settlement or an Objection to the Settlement. (§1.44) The same deadline applies to the submission of workweek disputes. (§7.6)

o

If the number of valid Requests for Exclusion identified in the Exclusion List exceeds 5% of the total of all Class Members, Defendant may, but is not obligated to, elect to withdraw from the Settlement. (§19)

.

Funding

of Settlement: Defendant shall begin funding the Gross Settlement Amount (including any increase to the Gross Settlement Amount pursuant to the Escalator Clause), and also fund the amounts necessary to fully pay Defendant's share of payroll taxes by transmitting the funds to the Administrator no later than 30 days after the Court grants preliminary approval and for 5 months thereafter every 30 days until the Gross Settlement Amount is fully funded. In total, Defendant shall make 6 monthly installments in the amount of \$22,500 each. Plaintiff received assurances, along with the mediator, that Defendant will make the payments with no threat of financial hardship. (§4.3)

o Defendant's controller represents that due to Defendant's position as a non-profit entity and its current financial position, the parties created a scheduled payment plan of the settlement amount so as not to impose an "insurmountable" financial burden. The parties agreed to this payment plan based on Defendant's financial position. (See Declaration of Gregory Cash.)

.

Disbursement:

Within 30 days after Defendant fully funds the Gross Settlement Amount, the Administrator will mail checks for all Individual Class Payments, all Individual PAGA Payments, the LWDA PAGA Payment, the Administration Expenses Payment, the Class Counsel Fees Payment, the Class Counsel Litigation Expenses Payment, and the Class Representative Service Payment. Disbursement of the Class Counsel Fees Payment, the Class Counsel Litigation Expenses Payment and the Class Representative Service Payment shall not precede disbursement of

Individual Class Payments and Individual PAGA Payments. Any portion of the Class Counsel Fees Payment and Class Counsel Litigation Expenses Payment not awarded to Plaintiff's Counsel and the Class Representative Service Payment not awarded to the Class Representative will be available for distribution to Settlement Class Members as part of the Net Settlement Amount. (§4.4)

Uncashed Settlement Checks: The face of each check shall prominently state the date (not less than 180 days after the date of mailing) when the check will be voided. (§4.4.1) For any Class Member whose Individual Class Payment check, Individual PAGA Payment check or combined check as referred to in Section 4.4.1., above, is uncashed and cancelled after the void date, the Administrator shall transmit the funds represented by such checks to the California Controller's Unclaimed Property Fund in the name of the Class Member thereby leaving no "unpaid residue" subject to the requirements of California Code of Civil Procedure Section 384, subd. (b). (§4.4.3)

The settlement administrator will be Phoenix Class Action Administration Solutions. (§1.2)

The proposed settlement was submitted to the LWDA on January 22, 2026. (Exhibit C to Schelly Decl. ISO Prelim.)

Releases of Claims: Effective on the date when Defendant fully funds the entire Gross Settlement Amount and funds all employer payroll taxes owed on the Wage Portion 1775293. Individual Class Payments, Plaintiff, Class Members, and Class Counsel will release claims against all Released Parties as follows: (§5)

o Release by Participating Class Members: All Participating Class Members, on behalf of themselves and their respective former and present representatives, agents, attorneys, heirs, administrators, successors, and assigns, release the Released Parties from (i) all claims that were alleged, or reasonably could have been

alleged, based on the facts stated in the Operative Complaint and that occurred or accrued at any time during the Class Period, including, any and all claims involving any alleged: (a) failure to pay premium overtime wages due; (b) failure to pay minimum wages; (c) failure to provide timely off duty meal periods; (d) failure to provide rest periods; (e) failure to maintain records and provide accurate itemized wage statements; (f) failure to pay wages due upon termination; (g) failure to reimburse business expenses; (h) failure to allow inspection of employment records; and (i) unfair competition. Except as set forth in Section 5.3 of this Agreement, Participating Class Members do not release any other claims, including claims for vested benefits, wrongful termination, violation of the Fair Employment and Housing Act, unemployment insurance, disability, social security, workers' compensation, or claims based on facts occurring outside the Class Period. (§5.2)

o Release by Aggrieved

Employees: All Aggrieved Employees, on behalf of themselves and their respective former and present representatives, agents, attorneys, heirs, administrators, successors, and assigns, release the Released Parties from all claims for PAGA penalties that were alleged, or reasonably could have been alleged, based on the PAGA Period facts stated in the Operative Complaint, and the PAGA Notice arising during the PAGA Period, including, any and all claims involving any alleged (a) failure to pay premium overtime wages due; (b) failure to provide minimum wages; (c) failure to provide timely off duty meal periods; (d) failure to provide rest periods; (e) failure to maintain records and provide accurate itemized wage statements; (f) failure to pay wages due upon termination; (g) failure to reimburse business expenses; and (h) failure to allow inspection of employment records. (§5.3)

§ "PAGA Notice" means

Plaintiff's letter to Defendant and the LWDA providing notice pursuant to Labor Code §2699.3, subd.(a). (§1.34)

§ Because future PAGA

claims are subject to claim preclusion upon entry of the Judgment, Non-Participating Class Members who are Aggrieved Employees are deemed to release the claims identified in Section 5.4 of this Agreement and are eligible for an Individual PAGA Payment. (§7.5.4)

o "Released Parties"

means: Defendant Valley Light Center for Social Advancement and Defendant's

past and present officers, directors, shareholders, managers, employees, agents, attorneys, principals, heirs, representatives, accountants, auditors, consultants, successors, predecessors, parents, subsidiaries, and affiliates, and each business entity owned by, operated by, or under common management, with, Defendant. (¶1.42)

0

The named Plaintiff will also provide a general release and Civ. Code §1542 waiver. (¶5.1)

ANALYSIS OF SETTLEMENT AGREEMENT

A.

Does a presumption of fairness exist?

The Court preliminarily found in its Order of April 16, 2026 that the presumption of fairness should be applied. No facts have come to the Court's attention that would alter that preliminary conclusion.

Accordingly, the settlement is entitled to a presumption of fairness as set forth in the preliminary approval order.

B.

Is the settlement fair, adequate, and reasonable?

The settlement was preliminarily found to be fair, adequate and reasonable. Notice has now been given to the Class and the LWDA.

Reaction

of the class members to the proposed settlement.

Number of class members: 53 (Tevenan Decl., ¶3.)

Number of notice packets mailed: 53 (Id. at ¶5.)

Number of undeliverable notices: 0 (Id. at ¶7.)

Number of opt-outs: 0 (Id. at ¶8.)

Number of objections: 0 (Id. at ¶9.)

Number of participating class members: 53 (Id. at ¶11.)

Average individual payment: \$994.81 (Id. at ¶14.)

Highest individual payment: \$1,865.18 (Ibid.)

The

Court finds that the notice was given as directed and conforms to due process

requirements. Given the reactions of the

Class Members and the LWDA to the proposed settlement and for the reasons set

for in the Preliminary Approval order, the settlement is found to be fair,

adequate, and reasonable.

C. Attorney Fees and Costs

Class

Counsel requests an award of \$47,250 (35%) in fees and \$6,575.06 in costs. (Memo ISO Class Counsel's at 1:27-2:1.) The

Settlement Agreement provides for up to \$47,250

(35%) in fees and \$10,000 in costs (¶3.2.2).

"Courts

recognize two methods for calculating attorney fees in civil class actions: the

lodestar/multiplier method and the percentage of recovery method." (Wershba

v. Apple Computer, Inc. (2001) 91 Cal.App.4th 224, 254.) Here, class counsel

request attorney fees using the percentage method, as crosschecked by lodestar.

(Memo ISO Class Counsel's at pp. 1-15.)

In

common fund cases, the Court may employ a percentage of the benefit method, as

cross-checked against the lodestar. (Laffitte

v. Robert Half Int'l, Inc. (2016) 1 Cal.5th 480, 503.) The fee request represents 35% of the

gross settlement amount, which is above the average generally awarded in class

actions. (See In re Consumer Privacy Cases (2009) 175 Cal.App.4th 545, 558, fn.

13 ["Empirical studies show that, regardless whether the percentage method or

the lodestar method is used, fee awards in class actions average around

one-third of the recovery."].)

Class Counsel has provided information,

summarized below, from which the lodestar may be calculated:

Attorneys

Rates

Hours

Totals

Thomas Schelly

\$850

18.5

\$15,725.00

Kevin Lipeles

\$850

28.4

\$23,800.00

Jala Amsellem

\$850

51.2

\$43,520.00

Todd Vollucci

\$850

11.5

\$9,775.00

Jasmine Badawi

\$650

.5

\$325.00

Justen Lipeles

\$300

9.3

\$2,790.00

Todd Vollucci

\$300

6.7

\$2,010.00

Andrew Rodriguez

\$300

2.5

\$750.00

Sayra Cruz-Aguilera

\$300

4.5

\$1,350.00

Totals

133.1

\$100,045.00

(Declaration of Thomas Schelly ISO Final, ¶150.)

Counsel's percentage-based fee request is lower than the unadjusted lodestar, and would represent application of a multiplier of approximately 0.47x.

The 35% fee request is at the higher end of percentages ordinarily approved in cases of this type. Here, there will be a delay in payment of the fees as this settlement is funded in installments. Further, the fee award amounts to less than one-half of the fees actually expended in favor to the class and aggrieved parties.

Notice of the fee request was provided to class members in the notice packet and no one objected. (Tevenan Decl., ¶9, Exhibit A.) Accordingly, the Court awards fees in the amount of \$47,250.

As for costs, Class Counsel is requesting a cost amount of \$6,575.06. This is less than the \$10,000 cap estimated at preliminary approval, which was not objected to. (Tevenan Decl., ¶9, Exhibit A.) Counsel represents that their costs include, but are not limited to: filing and service fees, Case Anywhere, and expert fees. (Schelly Decl. ISO Final, ¶153, Exhibit B.) The costs appear to be reasonable in amount and reasonably necessary to this litigation.

Based on the above, the recommendation is to award \$47,250 in fees and \$6,575.06 in costs.

D. Incentive Award

The class representative, Devon Bethune, seeks an enhancement payment of \$10,000 for

his contributions to the action. (Memo ISO Class Counsel's Fees at 15:9.)

In connection with the final fairness

hearing, named Plaintiffs must submit declarations attesting to why they should

be entitled to an enhancement award in the proposed amount. The named Plaintiffs must explain why they

"should be compensated for the expense or risk he has incurred in conferring a

benefit on other members of the class."

(Clark v. American Residential Services LLC (2009) 175

Cal.App.4th 785, 806.) Trial courts

should not sanction enhancement awards of thousands of dollars with "nothing more

than pro forma claims as to 'countless' hours expended, 'potential stigma' and 'potential risk.'

Significantly more specificity, in the form of quantification of time and

effort expended on the litigation, and in the form of reasoned explanation of

financial or other risks incurred by the named plaintiffs, is required in order

for the trial court to conclude that an enhancement was 'necessary to induce

[the named plaintiff] to participate in the suit" (Id.

at 806-807, italics and ellipsis in original.)

Plaintiff represents that his contributions

to this litigation include: participating in interviews and phone conferences,

producing documents, reviewing pleadings, reviewing documents and data provided

by Defendant, keeping in contact with his attorneys regarding the case status,

and remotely attending the mediation. He estimates spending 30 hours

on the case. (Declaration

of Devon Bethune ISO Final, ¶6.)

Based on the above,

as well as the benefits obtained on behalf of the class, the Court grants an

enhancement payment in the amount of \$7,500 to Plaintiff. Plaintiff's contribution to this litigation

are admirable but not so substantial as to warrant a higher award.

E.

Settlement Administration Costs

The settlement

administrator, Phoenix

Settlement Administrators, is requesting \$4,950 for the costs of

settlement administration. (Tevenan

Decl., ¶17.) This equals the estimate of \$4,950

provided for in the Settlement Agreement (¶3.2.3) and disclosed to class members in the Notice, to which there were no

objections. (Tevenan Decl., ¶19, Exhibit

A.) Based on the above, the recommendation is to award costs in the requested amount of \$4,950.